

deceptively easy to state: In general, there is no recovery in tort for *negligently* inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.’ (*Sheen [v. Wells Fargo Bank, N.A.]* (2022)) 12 Cal.5th at p. 922, italics added.) Or, as *Robinson* phrased the rule: ‘[t]he economic loss rule requires a [contractual party] to recover in contract for purely economic loss due to disappointed expectations, unless [the party] can demonstrate harm above and beyond a broken contractual promise.’ (*Robinson [Helicopter Co. Inc. v. Dana Corp.]* (2004)) 34 Cal.4th at p. 988.)” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20.)

Thus, “tort recovery for breach of a contract duty is generally barred... unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan, supra*, 17 Cal.5th at 20-21.)

“The court has also recognized a breach of contract may sound in tort even when the claim arises from, and is not independent of, the underlying contract if it is within the context of a ‘special relationship,” such as between an insurance company and an insured during the claim handling process, or between a lawyer and a client for malpractice in the provision of professional legal services. [Citations.]” (*Id.* at 23.)

Here, Bank of America argues that decedent’s relationship with it is purely contractual in nature and there is no physical injury alleged. Bank of America argues that relationship between a bank and a depositor is “founded on contract.” (*Chazen v. Centennial Bank* (1998) 61 Cal.App.4th 532, 537.) They argue that Blair was bound by the Bank’s Deposit Agreement and Disclosures. Bank of America includes a fifty-page contract without explaining what terms, if any, address how Bank of America agreed to handle an account after the account holder passed away. (Jordan dec. ex. B.) Bank of America has not shown that the claim here arises from Blair’s contract with Bank of America and therefore has not shown that the economic loss rule applies here.

Since Bank of America has not met its initial burden on showing that the negligence claim arises from Blair’s contract with the bank, the Court need not consider whether Orman had a special relationship with Bank of America.

The motion for summary adjudication on the economic loss rule affirmative defense is denied. Having found that the three issues for summary adjudication fail, the Court finds that the motion for summary judgment also fails.

Attorney Fees

Bank of America argues that normally fees are not allowed in tort cases and no statute authorizes fees here. Orman has not provided a basis for fees. The motion for summary adjudication as to attorney fees is granted.

CASE NAME: ABDESSALAM MANSORI VS. LAILA ELFAZOUZI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**

FILED BY: ELFAZOUZI, LAILA

TENTATIVE RULING:

This Tentative Ruling applies to Lines 8, 9, 10 and 11.

Summary

Counsel Christopher J. Dyas filed Motions to be Relieved as Counsel of Record for his clients, Laila Elfazouzi, and Ikram Mansori in related cases C24-00701 and C24-01098. But, it is not clear from the Motion that Mr. Dyas wishes to withdraw from representing his client Hatim Mansori, as well. Notices were provided to Ms. Elfazouzi and to Ikram Mansori "c/o Hatim Mansori." However, no declaration or motion was filed for Hatim Mansori in Case C24-00701. The opposing party in each case is Abdesalam Mansori. Assuming Mr. Dyas is making such a motion, these motions are unopposed and **granted** as to Laila Elfazouzi and Ikram Mansori.

Background

Abdesalam Mansori ("Abdesalam") is a Plaintiff in Case No. C24-00701 and is a Defendant in Case No. C24-01098. This case involves allegations in which Abdesalam claims that his mother, Laila Elfazouzi, and his siblings Ikram Mansori and Hatim Mansori, improperly placed a lien on a home that he owns in Discovery Bay, California. Specifically, Laila Elfazouzi recorded a mechanic's lien on property held by her son, Abdesalam Mansori, name on February 7, 2024.

The Court found that Ms. Elfazouzi had no legal authority to record a mechanic's lien on Abdesalam's property. The Court found that this lien was placed in an attempt to prevent Abdesalam from selling his property. A hearing to release or expunge the lien was calendared twice—the first time the court continued the matter due to issues involving notice of the actual hearing date. The petition to release the lien was eventually heard and granted on May 15, 2024. Abdesalam Mansori received a judgment as prevailing party for attorney's fees & costs in the amount of \$8,528.80.

Ms. Elfazouzi, Ikram Mansori and Hatim Mansori have been brought back to court on Orders to Show Cause and Orders of Examination for the purposes of paying attorney's fees owed to Abdesalam. Currently, the parties are attempting to work out a plan for payment of these fees. Mr. Dyas wishes to be relieved as Counsel from these two cases. Notices were provided to Ms. Elfazouzi and her daughter, Ikram Mansori. The Notices were supported by declaration of Mr. Dyas. However, the Court records do not show that Hatim Mansori was served with Mr. Dyas' Motion to be Relieved as Counsel.

Analyses

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Counsel Dyas has complied with the provisions of this rule and statute providing notice to his clients, Laila Elfazouzi supporting each motion with a declaration articulating

the reasons for withdrawal.

The Court acknowledges that dismissal of Counsel will likely result in further difficulty in arranging for a resolution of attorney's fees owed to Abdesalam Mansori. However, the Court continues to monitor the progress of the underlying action and understands that Abdesalam Mansori has assistance of counsel to pursue said fees.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. This motion is **granted** for Laila Elfazouzi and Ikram Mansori. The Court orders Mr. Dias to prepare Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), and e-file them with the Court. The withdrawal is effective immediately. Mr. Dias shall serve a copy of the Order to his former clients by mail at his last known address. No appearance is required on February 4, 2026. This order does not apply to Hatim Mansori.

Mr. Dias and counsel for Abdesalam Mansori are ordered to appear for a case management conference on July 30, 2026 at 8:30 a.m. and are ordered to file a further case management conference outline the status of this case as it relates to the satisfaction of judgment for attorney's fees.

9. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**
FILED BY: MANSORI, HATIM
TENTATIVE RULING:
See No. 8.

10. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**
FILED BY: MANSORI, IKRAM
TENTATIVE RULING:
See No. 8.

11. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR LAILA ELFAZOUZI**
FILED BY: ELFAZOUZI, LAILA
TENTATIVE RULING:
See No. 8.

12. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RAMANUJAN GROUP LLC
TENTATIVE RULING: